



Local Plan Examination

**Main Hearings: Matter Thirteen (Enabling Delivery,
Viability and Monitoring)**

October 2023

Acronyms

CIL – Community Infrastructure Levy (under Community Infrastructure Levy (CIL) Regulations 2010 (as amended))

S106 – Section 106 planning obligations (under section 106 of the Town and Country Planning Act 1990)

SPD – Supplementary Planning Document

Matter 13 – Enabling Delivery, Viability and Monitoring (Strategic Policy SP9 and Policy DMM1)

Matter 13, Issue 1- Are Policies SP9 and DMM1 justified, effective, consistent with national policy and in general conformity with the London Plan with regard to their approach to enabling delivery and monitoring

Strategic Policy SP9 Managing development and Appendix 3 Local Plan Key Performance Indicators

Q1 Overall, is the Council's approach to monitoring effective? Are the proposed indicators and targets measurable and relevant? Are any others necessary for monitoring to ensure the soundness of the Plan?

13.1.1 Overall, it is our view that the Council's approach to monitoring is effective. A number of Key Performance Indicators are set out in Appendix 3 linked to key themes of 'Design, Heritage and Conservation', 'Housing', 'Employment, 'Infrastructure', and 'Environment'. These themes coincide with our objectives on page 7 of the Plan which emphasise high-quality housing, sustainability, employment, and distinctive character areas that are well connected. We have provided a Table (see Appendix 1 to this Matter) providing our comments regarding the effectiveness of each indicator and whether the targets are measurable and relevant, alongside proposed Main Modifications that we feel may be helpful to ensure effectiveness.

13.1.2 However, upon further consideration it is our view that other indicators should be added to focus on our 20,000 jobs target, and to cover more areas of sustainable transport. We have included our proposed Main Modifications to Appendix 3 of the Local Plan in Appendix 1 of this Matter.

Q2. Does Policy SP9 and Appendix 3 set out clearly what actions will be taken and over what timescales if targets are not being achieved? Should it be explained what circumstances might trigger a review of the Plan or any other Council interventions in the interests of effectiveness?

13.1.3 Section 8 of the DMM11 sets out the circumstances in which we would propose to undertake a full or partial update of the Local Plan, although it is acknowledged that it could be clearer in order to be more effective. As such, the Council propose the following Main Modification to SP9.

13.1.4 *Amend section 9 of SP9 as follows:*

8. The Council is committed to ~~will undertake~~ a full or partial update of this the Local Plan ~~review every 5 years, in line with national policy. However, if our~~ we will continue to track our progress through the Annual Monitoring Report (which will assess our progress against the Key Performance Indicators set out in Appendix 3). ~~assessment indicates that changes to policy would better support delivery, or if our monitoring indicates an amended development strategy would be more effective. Where this suggests our policies are not being successfully implemented, we will consider whether an early review is necessary or whether other strategies (including the production of additional supplementary planning documents and guidance, and greater~~

collaboration with developers and other key stakeholders) may be more appropriate to addressing the relevant area of concern, with recommendations to Cabinet where appropriate.

Q3. Should the reference in section 7 be to Appendix 3?

13.1.5 Yes. The Council will propose an additional modification to rectify this.

Policy DMM1 Planning obligations

Q4. Is this policy effective when read alongside the Council's existing Planning Obligation SPD? Does the Council intend to update its SPD? If so, when is this update likely to be completed?

13.1.6 The Council currently only has a S106 Guidance Note (2014). However, the Council is currently working on a new Planning Obligations SPD and a draft version has already been consulted on (26th September 2022 - 7th November 2022). We have reviewed the feedback received and we are finalising further changes. It is intended that this will be adopted alongside the adoption of the new Local Plan.

Q5. Is requiring payment secured under planning obligations prior to commencement consistent with national policy?

13.1.7 We recognise that amendments are required to the policy to improve consistency with national policy. The Council propose the following Main Modification.

13.1.8 Amend section 3 of Policy DMM1 as follows:

3. Payments secured as planning obligations will normally be required at agreed trigger points, although some, for example monitoring fees, are paid upon agreement. ~~prior to commencement of the development (or phase of development in the case of outline permissions) unless a financial appraisal demonstrates that later payment is acceptable.~~ CIL payments are due 60 days from commencement, or 240 days for larger sums (as set out in the instalment policy). Where delivery of specific infrastructure or other works are required to enable development, the Council will use planning obligations to define the timing of development in relation to delivery of this.

Q6. What evidence is there to support prioritisation of funding where viability limits contributions? Are the stated priorities in general conformity with the London Plan?

13.1.9 Policy DF1 D of the London Plan sets out that "When setting policies seeking planning obligations in local Development Plan Documents and in situations where it has been demonstrated that planning obligations cannot viably be supported by a specific development, applicants and decision-makers should firstly apply priority to affordable housing and necessary public transport improvements, and following this:

1) recognise the role large sites can play in delivering necessary health and education infrastructure; and 2) recognise the importance of affordable workspace, and culture and leisure facilities in delivering good growth."

- 13.1.10 Our specification of affordable housing, public transport and active travel is therefore in general conformity with the London Plan. However, we propose to include references to contributions to healthcare and education and references to the role of workspace, culture and leisure facilities in delivering good growth. However, both sustainability and employment provision are incredibly important to the Council and are central to meeting our objectives as set out on page 7 of the Plan.
- 13.1.11 In terms of more specific evidence to support our focus on employment, recent Census data shows that Barking and Dagenham has the 7th highest proportion who were unemployed (including full-time students) (5.6%). Additionally, of people aged 16 and over who were not in employment, Barking & Dagenham had the 3rd highest proportion (in England & Wales) who had never worked (42%). Of people aged 16 and over who were economically active, Barking & Dagenham had the lowest qualification index score (2.70) of all London boroughs and is one of only 5 London boroughs whose score is below the English average. This demonstrates a real need for employment and training opportunities in the borough.
- 13.1.12 We therefore do not propose to remove references to sustainability or employment in this paragraph.
- 13.1.13 However, taking into consideration the above, the Council propose the following Main Modification to Policy DMM 1.
- 13.1.14 *Amend section 4 of Policy DMM 1:*
4. Developments which cannot meet the Local Plan requirements because of viability impacts will be expected to provide evidence of this in a financial appraisal submitted as part of their planning application. If a financial appraisal demonstrates that planning obligations cannot viably be afforded, the Council will prioritise affordable housing, ~~sustainability~~, and necessary public transport and active travel improvements. Beyond this, there is an expectation that contributions will be made to healthcare, education infrastructure, affordable workspace and culture and leisure facilities where there is an identified need. Contributions to employment and sustainability will continue to play a significant role in S106 agreements.

Matter 13, Appendix 1 (Review of KPIs, Targets and Sources of Monitoring Information in Appendix 3 of the Local Plan – Local Plan Key Performance Indicators)

Matter 13, Q1: Overall, is the Council's approach to monitoring effective? Are the proposed indicators and targets measurable and relevant? Are any others necessary for monitoring to ensure the soundness of the Plan?

Number	KPI	Target (if applicable)	Source of monitoring information	EFFECTIVE/RELEVANT/MEASURABLE Assessment
Design, heritage conservation				
1	% of planning appeals allowed on design grounds	N/A	Appeals Record from the Quality Review Panel, Local, national and international design awards <u>Planning Database</u>	Effective as it will allow us to assess whether our design policies are being successfully implemented and can be measured. No initial target required, but it is important to keep it under review. Relevant to our distinct character neighbourhoods and high quality homes objectives
2	Number of designated or non-designated heritage assets: - Lost - Subject to harm	<u>Reduction</u>	Planning database and heritage risk register	Relevant to our distinct character neighbourhoods and effective as can be measured
3	Number of tall buildings within and outside of Tall Building Locations (for the purposes of this indicator, only development referable to the Mayor of London for being over 30 metres in height will be looked at)	N/A	Planning database	Measurable and relevant to our high-quality homes and distinctive neighbourhood character objectives. Effective to understanding if our policies are being successfully implemented.
Housing				
4	Net and gross number of new homes completed, started, and permitted within monitoring period.	19,440 between 2019-2029, including 1,990 small sites target	Planning database, on-site monitoring	Measurable, effective and relevant to our housing objectives. This type of information is already collected and submitted to the GLA.

5	Capacity for additional housing from developable sites for years 0-5, 5-10, 10+ of the boroughs housing trajectory (including small sites below 0.25ha).	To demonstrate a five-year supply for housing (on a rolling basis) and a 15-year trajectory	GLA, SHLAA, LBBD Housing Land Assessment	Effective and measurable. Using SHLAA and HLA means these are backed by evidence and are justified. Relevant to our housing objectives.
6	Total number of completed, started, and permitted within the monitoring period classified as affordable by unit size for including breakdown by: - Low-cost rent (social rent of affordable rent) - Intermediate (LLR or shared ownership) - Market	Borough-wide strategic target 50%	Planning database, Affordable Housing team	Measurable, effective and relevant to our housing and 'No One Left Behind' objectives. This type of information is already collected and submitted to the GLA.
7	Percentage of units approved and completed which are M4 (2) accessible and adaptable dwellings compliant and M4 (3) wheelchair user dwellings compliant	<u>10% of dwellings (which are created via works which Part M Vol 1 of the Building Regulations applies) must meet M4(3) 'wheelchair user dwellings' requirements and all others should meet M4 (2) requirements 'accessible and adaptable dwellings'.</u>	Planning database <u>and</u> <u>LBBD/Be First Housing</u>	Effective and measurable. Planning database will contain application details which can be checked to ensure compliance with design and eligibility of site to be made adaptable and/or accessible. Relevant to our 'No One Left Behind' and housing objectives.

8	Number of beds provided as part of a specialist housing schemes completed and permitted within the monitoring period, categorised by type and sub-area	GLA target for specialist older persons housing: 70 units per annum between 2017-2029	<u>Planning database and LBBD Housing</u>	Measurable and effective. Relevant to our 'No One Left Behind' and housing objectives.
9	Total number of build-to-rent units completed and permitted within the monitoring period	N/A	Planning database	Measurable and effective. Relevant to our housing and 'No One Left Behind' objectives. No target, but important to keep under review.
10	Number of student beds completed and permitted within the monitoring period, categorised by place, and the proportion of which are considered affordable	N/A	Planning database	Monitoring conditional to identified need for student accommodation. The London Plan states that: "Strategic requirements for PBSA are not specified in borough-level targets as these will fluctuate throughout the plan period." Relevant to our housing, 'No One Left Behind', economy and distinctive places objectives.
Employment				
11	Net gain and loss (sq.) SIL and LSIS within the borough (approved and completed)	<u>No Net Loss of SIL Floorspace in line with Appendix 5</u>	Planning database and VOA database and on-site	Effective and measurable. Industrial land is a priority for London and the GLA, and a key contributor to our ambitions for job growth. Relevant to our jobs and character area objectives.
12	Total affordable employment floorspace proposed in permitted and the proportion of overall employment space	N/A	Planning database	Measurable and a useful indicator for us to track to see the effectiveness of our policies, particularly when bringing forward creative spaces. Relevant to our economic objective.
13	Number of new hotel rooms and floorspace granted planning permission and completed within the	N/A	Planning database	We propose removing this as we do not think it will be effective or contribute significantly to our wider vision.

	monitoring period and by sub-area			
14	<u>Monitoring jobs delivered by new development</u>	<u>20,000 jobs over plan period</u>	<u>Planning database</u>	Measurable through checking planning applications, effective and one of our key objectives. We will monitor yearly, and review trends (particularly every 5 years).
Environment				
145	Total amount of new publicly accessible open space, new parks (part of a large-scale development) and play space by sub-area	<u>Net Increase</u>	LBBD Parks Team	Measurable and relevant to green space/environmental objective. Useful to monitor to check our policies are being successfully implemented.
17	Net area of designated SINCs through permitted schemes		Planning Database	We think this is unclear and therefore we propose removing
16	Percentage of permitted schemes achieving at least 10% BNG	<u>Minimum UGF of 0.4 on average across permitted schemes</u>	Planning Database	We think this is effective as BDNG metrics will be reviewed as part of our ongoing work in this area. Measurable, and relevant to our sustainability objective.
Sustainable infrastructure				
17	Number of permitted and completed major development schemes designed to achieve the net zero carbon target	<u>Net increase</u>	Planning database and on-site monitoring	Measurable, effective and relevant to our environmental objective.
18	Total sum of Carbon Offset Funds secured and received through S106 agreements	N/A	S106 Monitoring Database	Measurable, effective and relevant to our environmental objective. No target specified, but important to monitor.
Transport				
19	Net loss and gain of depots and wharves	<u>No net loss</u>	Planning database	Measurable
<u>20</u>	Number of car-free developments permitted	<u>Increase</u>	Planning database	Measurable and effective. Relevant towards our sustainability objective
<u>21</u>	<u>Number of car club bays delivered by developments</u>	<u>N/A</u>	<u>Transport Team Monitoring</u>	Measurable and effective. Relevant towards our sustainability objective

<u>22</u>	<u>Number of EV charging points delivered by developments</u>	<u>N/A</u>	<u>Transport Team Monitoring</u>	Measurable and effective. Relevant towards our sustainability objective
Sustainable Transport Indexes (Collected by others)				
<u>25</u>	<u>Increase the number of bus passengers by reducing delays on the network</u>	<u>Net increase</u>	<u>TfL bus delay reporting</u>	This information is collected externally, however we think it is important to keep track of this and we report to Cabinet yearly
<u>26</u>	<u>Reduce the number of people killed or seriously injured</u>	<u>Vision Zero</u>	<u>TfL's collision statistics database</u>	This information is collected externally, however we think it is important to keep track of this and we report to Cabinet yearly